

ONTARIO
SUPERIOR COURT OF JUSTICE

B E T W E E N:

SYLVIA FLENTJE

Plaintiff

- and -

CARL NICHOLS and BUCKHORN
RESTAURANT & BANQUET FACILITIES

Defendants

H. Barry Starr Q.C., for the Applicant

Christopher P. Merla, for the Respondent

HEARD: June 5-7, 2006

Blishen J.

Introduction

[1] In this action, Sylvia Flentje claims damages for injuries suffered when she slipped and fell in the defendants' parking lot.

[2] On January 18, 2002, Sylvia Flentje, along with her brother and two friends were crossing the parking lot leading to the entrance of the Buckhorn Restaurant and Bar in Calabogie, Ontario when Ms. Flentje fell. She sustained a severe fracture to her lower right leg/ankle which required surgery to insert a metal plate and screws and resulted in a large scar. Due to her injuries, Ms. Flentje was unable to return to her job as an office clerk for three months. On August 12, 2003, Ms. Flentje underwent further surgery to remove the plate and screws. Although she has a large scar on her lower right leg, she is left with no permanent functional deficit or restrictions.

[3] The plaintiff, Sylvia Flentje argues that the defendant Carl Nichols, owner and operator of the Buckhorn Restaurant and Banquet Facilities, which carried on business as a restaurant and bar, failed in his duty to maintain the parking lot in a reasonable condition and further was negligent. Mr. Nichols states that he took all reasonable steps to safely maintain the parking lot and the fall resulted from Ms. Flentje's negligence.

[4] The parties agreed to the following:

- (a) Ms. Flentje's loss of income;
- (b) the amount of OHIP's subrogated claim; and,
- (c) the amount of Ms. Flentje's other out of pocket expenses.

[5] The issues left to be determined are:

- 1. liability of the defendants;
- 2. any contributory negligence of the plaintiff;
- 3. the quantum of general damages;
- 4. prejudgment interest; and,
- 5. costs.

Factual Background

[6] There are a number of largely undisputed facts which can be summarized as follows:

Sylvia Flentje

[7] Ms. Flentje is 29 years old and was 24 years old at the time of the accident. Before the accident, she was an independent "outdoorsy" young woman, who resided alone in a log farmhouse across the road from her father, in the small village of Tatlock, located near Calabogie in the Ottawa valley. Ms. Flentje enjoyed snowmobiling, hiking, ice fishing, boating and water skiing. Her log home was heated by a wood stove and she chopped her own wood. Although she had suffered from depression and was prescribed Paxil, she was an active, energetic young woman. In January 2002, Ms. Flentje was employed as an office clerk at Mason Windows in Carleton Place, Ontario. She was also a member of the Darling Township Volunteer Fire Department.

Carl Nichols and the Buckhorn Restaurant/Bar

[8] In 2002 and for many years before, Mr. Nichols was the owner of property on Calabogie Road in the village of Calabogie, Ontario on which were located two south facing buildings. The east building was rented to a flea market business, which opened in 1988. The west building housed the Buckhorn Restaurant and Banquet Facilities which consisted of a banquet room, restaurant/bar and a meeting room with pool tables and video games. The west building also housed a pizza outlet and, around the corner to the west, Calabogie Home Support Services.

Mr. Nichols and his common law partner of 34½ years, Della Charbonneau, ran the Buckhorn Restaurant and Bar. In addition, Mr. Nichols was responsible for maintaining the entire property, including the walkway which ran around the front of the buildings and the large 75 foot deep paved asphalt parking lot. The concrete walkway was five feet wide and had a roof over it, which extended three feet into the parking lot. Therefore the roof overhang was eight feet wide.

[9] Since its opening in 1992-1993, Mr. Nichols and Ms. Charbonneau have operated the restaurant/bar, seven days a week, 364 days a year, following the same schedule. Mr. Nichols usually arrives at the restaurant between 7 and 7:30 in the morning. The business is open for customers at 8 o'clock and closes at approximately 11 p.m. on weekdays, and on the busiest nights, Fridays and Saturdays, closes at between midnight and 1 a.m. Mr. Nichols does not remain on the premises throughout the day, but will return to his nearby residence. It is his job to cook the breakfast, which is usually finished by 11 a.m.

[10] Mr. Nichols employs approximately four to five staff, including a waitress, a bartender and a couple of part time servers for weekends.

[11] A large number of people use the restaurant/bar and banquet facilities. Every week, there are card parties Monday night, attended by approximately 55 to 60 people, darts on Thursday night, and in addition, the Lions Club and other meetings are held on a regular basis. In the winter, a large number of snowmobilers park in the field across from the parking lot and come into the bar and restaurant. Both Mr. Nichols and Ms. Charbonneau testified that they have thousands of customers in a year for whom they are responsible. The Buckhorn is a busy commercial enterprise.

Weather

[12] Ms. Flentje recalls that a few centimeters of snow had fallen during the day on January 18, 2002, but it was not snowing at the time she and the others arrived at the Buckhorn. Mr. Somerville, who accompanied Ms. Flentje, recalled it had been snowing off and on that day and it was slippery as he entered the parking lot.

[13] Ms. Charbonneau, who had been alerted to the accident by another bar patron, went out to try to determine where Ms. Flentje had fallen. She recalls approximately one-half an inch (just over one centimeter) of snow, or what she termed a "skiff" of snow, on the parking lot. There had been a light snowfall that day which she termed "feathery". Ms. Charbonneau kept records of the temperature at the bar and that evening recorded the temperature as -12°C.

[14] Meteorological reports for Ottawa, the Township of Horton where Renfrew is located, and Ompah were filed. There are no records for Calabogie. As the crow flies, Renfrew and Ompah are closer to Calabogie than Ottawa, with Renfrew being the closest. Although there were slight discrepancies as to the amount of snowfall and the precise temperature, the reports confirm between a trace of snow (Ompah) and four to five centimeters (Horton Township) on January 18, 2002 with the weather being recorded as clear in the late hours of January 18th (Ottawa) with snow showers earlier in the day. The temperature was recorded as being between

-9°C (Ottawa) and -11°C (Ompah) at the time of the accident. Ms. Charbonneau recorded the temperature as -12°C on January 18, 2002. The maximum temperatures that day were recorded as -2.9°C (Ottawa) and -2°C (Ompah). In summary, in the hours preceding the accident, it had snowed lightly and was cold.

The Accident

[15] On January 18, 2002, Ms. Flentje finished work between 4:30 and 5 p.m. and drove to Almonte to meet her friends Greg Somerville, Tracy Brown and Serge Nolt for dinner. She left her car at Tracy Brown's and the two of them walked to the restaurant together. They stayed for approximately two hours, during which time Ms. Flentje drank two beers. After leaving the restaurant, Ms. Flentje drove Mr. Nolt's car to her home in Tatlock (a 20 minute drive) followed by Ms. Brown and Mr. Somerville in Mr. Somerville's car. While at her residence, Ms. Flentje changed and may have consumed another beer. The group then went to a neighbour's home, picked up Ms. Flentje's brother, Shane, and everyone except Ms. Brown travelled in Mr. Somerville's car the 35 to 40 minutes to the Buckhorn in Calabogie, with Mr. Somerville driving.

[16] Upon arriving at the Buckhorn, they pulled into the parking lot and parked at the east end of the west building facing and to the right of the entrance to the Buckhorn Restaurant/Bar. Everyone exited the vehicle and began to walk across the lot to the doors of the Buckhorn. Ms. Flentje forgot her cigarettes so she and Greg Somerville went back to the car; she got the cigarettes, walked around the back of the car and across the parking lot on an angle towards the door of the restaurant. Mr. Somerville, her brother and Mr. Nolt were ahead of her. A few feet before the sidewalk near the entrance to the restaurant, Ms. Flentje slipped and fell, landing on her back with her feet facing the building. Although she was not clear as to the precise location of her fall, her evidence and that of Mr. Somerville and Shane Flentje indicates that she fell near the walkway in the area of the dripline from the roof overhanging the sidewalk.

[17] Mr. Somerville and Shane Flentje helped Ms. Flentje to her feet and carried her to the car, hoping she had just sprained her ankle and would "shake it off". Shane and Serge Nolt then went into the bar while Mr. Somerville remained in the car with Ms. Flentje. When the pain in Ms. Flentje's ankle became worse, Mr. Somerville went into the bar, got the others and proceeded to the Almonte Hospital, where Ms. Flentje was diagnosed with a broken right lower leg/ankle. A cast was applied and she was referred to the Ottawa Hospital, Civic Campus. There, she was diagnosed with a comminuted fracture of the right distal tibia. Surgery was performed on January 20, a plate and screws were used to internally fixate the fracture and a cast was applied. She was sent home on January 21 with medication for pain, to return on January 30 for follow up.

[18] Mr. Nichols and Ms. Charbonneau were never notified by Ms. Flentje or anyone else about the accident and injuries, until they were served with the Statement of Claim two years later in January 2004.

Post Accident

[19] Ms. Flentje returned to the Ottawa Hospital, Civic Campus on January 30, 2002 at which time her 35 sutures were removed and she was placed in a below the knee non weight bearing cast. She was subsequently followed by Dr. Paul Anderson, an orthopedic surgeon, in Perth in order to reduce travel time.

[20] After being discharged from the hospital, Ms. Flentje resided with her father for three weeks. He lives across the street from her in Tatlock. She was unable to maintain her own home which is heated by a woodstove requiring her to chop and carry wood. She was frustrated, bored and depressed. By the end of the first week in February 2002, Ms. Flentje returned to her own home where her roommate, Greg Somerville, who had accompanied her the night of the accident, continued to assist her.

[21] On February 26, 2002, a walking cast was applied and Ms. Flentje was able to begin weight bearing and doing more things on her own. When the cast was removed on April 8, 2002, Dr. Anderson reported she was able to walk independently with full weight on her right leg although with a slight limp. The surgery left a long scar running around her ankle and up the middle of her lower right leg.

[22] Ms. Flentje was able to return to her job as an office clerk on April 15, 2002. Dr. Anderson indicated there were no restrictions with respect to her walking, standing or lifting and that she had recovered well from a serious injury. Ms. Flentje left her job at Mason Windows on April 24, 2002 and began working outdoors at a sawmill. She later left that employment and worked for a while at a gas station. She continued to complain of discomfort and some swelling. She testified that she was unable to participate in the outdoor activities that she loved, to the same degree.

[23] In the fall of 2002, Ms. Flentje approached Dr. Anderson with respect to removing the plate and screws in her leg. In a letter dated September 11, 2002, Dr. Anderson notes that her right ankle has an excellent range of movement. X-rays confirmed that the calcium had been restored to the bones in her right leg. He indicated that he was not enthusiastic about her plan to have the plate removed "because I don't believe removing the plate will give her a lot of different feelings within the leg". Nevertheless, after reviewing the advantages and disadvantages of surgery with her, Dr. Anderson indicated he would assist her in this regard. On August 12, 2003, her previous incision was excised and the plate and screws were removed. On August 25, 2003, her sutures were removed, the wound was one hundred percent healed and she was ambulatory without discomfort.

[24] Ms. Flentje testified that if she overexerts herself, she will limp a bit and there will be some swelling of the ankle. Changes in the weather can also cause swelling. She is very self-conscious regarding the scar on her leg and will not wear shorts, even in hot weather.

[25] Dr. Anderson indicated in his letter to counsel dated October 11, 2004 “the impact of this fracture was to disable her while she recovered. The permanent sequelae is fortunately only a large scar on the leg but no functional deficit or restrictions.”

Liability

The Law

[26] The onus is on the plaintiff to prove on a balance of probabilities that the defendants were in breach of a duty of care. Section 3(1) of the *Occupiers' Liability Act*, R.S.O. 1990 c. O.2, sets out the statutory duty as follows:

An occupier of premises owes a duty to take such care as in all the circumstances of the case is reasonable to see that persons entering on the premises, and the property brought on the premises by those persons are reasonably safe while on the premises.

[27] There is no question that Mr. Nichols was the occupier of the property where Ms. Flentje fell. Therefore, it is necessary to determine whether Mr. Nichols has met the duty of care set out in the legislation.

[28] The leading case relating to an occupier's duty of care is the decision of the Ontario Court of Appeal in *Waldick v. Malcolm* (1989), 70 O.R. (2d) 717 (QL), aff'd (1991), 83 D.L.R. (4th) 114 (S.C.C.). In that case, a severe ice storm four days before the accident, followed by snow, made the defendants' rural driveway extremely icy and slippery. Although the defendants shovelled and salted the porch and porch steps, they did not salt or sand the driveway. The conduct of the defendants was found to fall below the duty of care.

[29] Mr. Justice Blair of the Court of Appeal stated:

...All courts have agreed that the section imposes on occupiers an affirmative duty to make the premises reasonably safe for persons entering them by taking reasonable care to protect such persons from foreseeable harm. The section assimilates occupiers' liability with the modern law of negligence. The duty is not absolute and occupiers are not insurers liable for any damages suffered by persons entering their premises. Their responsibility is only to take "such care as in all the circumstances of the case is reasonable".

[30] In *Waldick, supra*, the court emphasized that what constitutes reasonable care will depend on the specific circumstances of each case. Subsequent cases have expanded on this principal in situations where there is a known danger such as ice and snow conditions in parking lots. Although owners and occupiers are not insurers and must not meet a standard of perfection, they must have a reasonable system in place to ensure users will be reasonably safe from slipping and falling due to weather conditions. In addition, the system must be functioning properly: see *Gardiner v. Thunder Bay Regional Hospital*, [1999] O.J. No. 833 (Ont.Gen.Div.); *Prezelski v.*

Ontario Casino Corp., [2001] O.J. No. 3012 (Ont.S.C.J.); and *Fragomeni v. Ontario Corp.* 1080486, 2006 CarswellOnt 2442 (Ont.S.C.J.).

Was There a System in Place?

[31] Mr. Nichols had a statutory duty to ensure that Ms. Flentje would be reasonably safe while on his premises.

General Maintenance and Lighting

[32] The parking lot in front of the Buckhorn Restaurant/Bar is paved asphalt. There is no evidence that the asphalt was damaged or of any holes, cracks or bumps in the pavement. Similarly, there was no evidence of any such difficulties with the concrete walkway running in front of the building, underneath the overhang, approximately one inch up from the parking lot level. The photographs filed as exhibits and the evidence of Mr. Nichols and Ms. Charbonneau reveal the following lighting on the premises:

1. rope lighting on the edge of the overhang around the building.
2. five light fixtures in the ceiling of the overhang, each with two 60 watt bulbs.
3. a light on a pole between the west (Buckhorn) building and the east building.
4. four 500 watt lights on a hydro pole in the parking lot to the left facing the entrance to the Buckhorn.

[33] Mr Nichols assumed responsibility for ensuring the lighting was working and the bulbs were replaced.

[34] I find on a balance of probabilities that Mr Nichols had a lighting system that was adequate and reasonable in all the circumstances to ensure the safety of his customers.

Snow and Ice Removal

[35] Part of Mr. Nichols' duty of care required him to maintain a reasonable system of snow and ice removal during the winter months.

[36] Mr. Nichols was and remains solely responsible for winter maintenance. He testified that he does "whatever has to be done" during the winter months, at times assisted by his son. Mr. Nichols owns a backhoe and a heavy duty commercial snowplough which, in January 2002, he placed on the front of his 1996 Ford F150 truck.

[37] Although he has no set schedule for ploughing, Mr. Nichols checks the parking lot as he goes in and out during the day and ploughs as necessary using "common sense". He testified that if there are just a couple of centimeters of snow in the lot, he probably will not plough, waiting until more snow falls. If it snows overnight, Mr. Nichols' practise is to arrive at the restaurant early, at approximately 6 a.m., and plough before customers begin to arrive.

[38] Mr. Nichols' practise is to plough right up against the lip of the sidewalk under the overhang, which he testified is adequate to remove any build up of snow or any snow that might fall off the south facing, metal roof during the day. Any snow that blows onto the sidewalk

under the overhang is swept off by himself or Ms. Charbonneau, first thing in the morning and during the day “as needed”.

[39] Mr. Nichols keeps a pail of salt at the front door and uses it “as needed” in the parking lot, on the sidewalk at the front and along the dripline from the overhang, if he notices any ice or freezing conditions. Ms. Charbonneau testified that at times she scatters salt around the phone booth located in the parking lot.

[40] Mr. Nichols indicated that ice on the parking lot is infrequent, as the snow plough removes it. However, at times, after freezing rain, he salts the lot. He does not often salt the overhang dripline but will do so if the weather has been mild during the day and freezing at night. There is no eavestroughing around the overhang and Mr. Nichols acknowledged that, after a snowfall, the snow comes off the metal, south facing roof quickly as the sun hits it. The dripline is salted at his discretion. Sand is not used on a regular basis as it is messy and Mr. Nichols finds salt more effective. He does keep pails of sand at the rear door but seldom uses them.

[41] Andrew Willette, an inspector from the Alcohol and Gaming Commission, testified that he goes to the Buckhorn once every four to six weeks to inspect for liquor violations. Although it is not part of Mr. Willette’s job to inspect the parking lot, he noted that in the winter, the parking lot is always clean and salted. He has observed salt and melting ice around the building where customers get out of their vehicles. He has not observed any sand being used.

[42] Grant Phillator who is a forester for Hydro1, lives in Calabogie and goes to the Buckhorn Restaurant daily for coffee and weekly to play darts, which has been his routine for 10 years. He has always observed the premises to be neat, clean and tidy. In the winter, he has observed a pail of salt at the front door and has noted that Mr. Nichols “ploughs every day”. In fact, Mr. Phillator indicated that within the Calabogie area, Mr. Nichols is jokingly referred to as the “plough king”, as he is constantly out ploughing.

[43] Steven Leclerc also works for Hydro1 and was a bartender at the Buckhorn Restaurant until five years ago. Over the last four or five years, he has been at the Buckhorn Restaurant two to three times per week. Mr. Leclerc testified that the parking lot is always ploughed and kept clear during the winter. Salt is always available in a pail at the front door and is used by Mr. Nichols, who is very diligent in that regard. Mr. Leclerc observed that Mr. Nichols is consistently ploughing and appears to enjoy the activity. The sidewalk under the covered roof is always clear and the few feet beyond the sidewalk is also kept clear. He agreed that snow and ice can build up under the dripline but stated that Mr. Nichols would be out ploughing or salting it right away. When Mr. Leclerc was bartender, he was not responsible for any maintainance of the premises. Mr. Nichols was responsible, at times assisted by his son.

[44] Based on all the evidence, did Mr. Nichols have a reasonable system to deal with winter maintainance? In summary:

1. Mr. Nichols owns and operates a busy commercial enterprise. The restaurant/bar is especially busy Friday and Saturday nights.
2. Although Mr. Nichols alone assumed responsibility for dealing with snow and ice removal from the premises, there was evidence that “at times” he was assisted by his son. It is unclear how or when his son would assist, or under what circumstances. In addition, Ms. Charbonneau would often sweep snow off the sidewalk and at times scattered salt around the phone booth in the parking lot, if she felt it necessary.
3. Mr. Nichols had the appropriate equipment to deal with snow and ice removal. He owned and operated a backhoe as well as a heavy duty commercial snowplough placed on the front of his Ford F150 truck. He had an ample supply of salt available and always had salt in a pail at the front door.
4. Although Mr. Nichols inspected the premises throughout the day, every day, there was no set schedule for inspection and there were times when he was not present.
5. Mr. Nichols used “common sense” to determine when to plough, indicating that he would not usually plough if the accumulation was less than one inch or a couple of centimetres. He ploughed consistently and was known in the community as the “plough king”.
6. Mr. Nichols used the snow plough to remove snow and ice. He ploughed right up to the lip of the sidewalk under the overhang and his inspections did not often reveal a need for salt.
7. Mr. Nichols salted “as needed”. He salted the sidewalk and under the dripline from the overhang if his inspection revealed ice, if the area was wet and starting to freeze or the temperature was dropping. There was no regular salting of the dripline and there was no eavestroughing on the overhang.
8. Mr. Nichols did not delineate any danger areas, such as under the dripline or around the phone booth.
9. He used salt in the parking lot, if there had been freezing rain, or again if he observed ice. He did not use sand because it was messy and he did not find it effective, although he did have some sand available at the back door.
10. Mr. Nichols was observed by regular customers to be diligent and conscientious in maintaining his parking lot and walkway free of ice and snow. Mr. Nichols testified that there had been no other problems or accidents on his premises in its 13 to 14 years of operation.

[45] On the basis of all the evidence I find that, although Mr. Nichols was diligent, conscientious and had his own version of a system, that system of winter snow and ice removal was not reasonable for a commercial establishment, in order to ensure its numerous customers were reasonably safe from slipping and falling due to weather conditions. There was no regular salting under the dripline which was prone to ice build up. Although Mr. Nichols ploughed snow consistently, his system of salting was haphazard. As stated by the trial judge in *Waldick v. Malcolm* (1987), 61 O.R. (2d) 624, (Ont.H.C.J.) (QL) :

I consider also the fact that in the defendant Mrs. Malcolm's own words salt is not expensive. Nor, in my view, is the size of the defendants' parking area so large as to make the cost of sanding or salting dangerous areas prohibitive. While I am not prepared to find that the defendants ought to have cleared or salted or sanded every square inch of their parking area, it would have been reasonable to set aside a portion of their lot next to the entrance for treatment. I accept that icy conditions during Ontario winters are a fact of life. I accept as well that occupiers are not insurers and that it is reasonable to expect that visitors will take reasonable care for their own safety. However, by virtue of s. 3(1) of the Act an affirmative duty rested upon these defendants to see that visitors such as the plaintiff were reasonably safe on their premises.

Was the System Functioning Properly?

[46] Even if I found Mr. Nichols had a reasonable system, I could not find it was functioning properly. Mr. Nichols was unaware there had been an accident in which Ms. Flentje was injured until two years after the fact. Therefore, neither he nor other defence witnesses directed their minds to the circumstances and conditions on the night of January 18, 2002 until years after the fact. Ms. Charbonneau did recall receiving information that evening about a fall. She went outside to see if she could determine the location. She testified there was a "skiff" of snow on the parking lot but that it was not slippery and she was able to walk in penny loafers. Given that no records were kept, Mr. Nichols is unable to recall when he last ploughed or used salt in the parking lot. He can simply testify as to his usual winter maintenance system over the previous 10 years.

[47] Ms. Flentje, her brother Shane and Greg Somerville all testified that the parking lot was snow covered when they arrived that evening. Mr. Somerville estimated there were perhaps one to two centimeters of snow on the lot. He could see the tire tracks from other cars that had entered the lot. Mr. Somerville commented that it was slippery as he drove the vehicle into the lot. Shane Flentje stated that when he was walking, he found the parking lot slippery. There were no signs that any salt or sand had been used on the parking lot or in the area approaching the door to the Buckhorn. Ms. Flentje fell in the area just before the walkway, underneath the overhang, although she was not able to pinpoint the location precisely. Mr. Somerville testified that she was near the sidewalk and Shane Flentje testified that she was three to four feet out from the sidewalk when he saw her lying on her back with her feet pointed towards the door of the restaurant. Ms. Flentje thought that she had slipped on some ice and Shane Flentje indicated that he could see the glare of ice in the area of her fall. As noted, there were no signs that sand or salt had been spread in the lot or in the area where Ms. Flentje fell.

[48] The meteorological records confirm that there had been snow that day, between a trace as noted in Ompah and four to five centimeters as noted in Renfrew and that it was a cold night with a low in the vicinity of -11°C to -12°C, as noted by Ms. Charbonneau.

[49] Mr. Nichols was not at the Buckhorn that night. Even if he ploughed earlier that day and perhaps salted, which is unclear, he had not ploughed and salted sufficiently to reduce the risk to his customers given winter conditions in Ontario, which were dangerous. I note the following:

1. The combination of snow and very cold, below freezing temperatures made it extremely likely that the surface of the parking lot would be icy.
2. Ms. Flentje and the others went to the bar on a Friday night, which was known to be one of the busier nights for the restaurant with many people walking through the parking lot.
3. Mr. Nichols was not present at the Buckhorn that night and he was solely responsible for winter maintenance.
4. The area where Ms. Flentje fell is near the dripline of the overhang which is known to be prone to ice buildup.

Conclusion

[50] In summary, having considered all the evidence, I find, on a balance of probabilities that Mr. Nichols did not have a reasonable system to ensure his customers would be reasonably safe from slipping and falling due to winter weather conditions. Even if he did have such a system, I find it was not functioning properly on the evening of January 18, 2002. Therefore, I find that Mr. Nichols breached his duty of care to Ms. Flentje under s. 3(1) of the *Occupiers' Liability Act*.

Contributory Negligence

[51] Mr. Nichols argues that Ms. Flentje was contributorily negligent, as she had consumed three beers before arriving at the Buckhorn Restaurant and Bar; she was looking straight ahead and not taking any special care in walking, despite the conditions; and she was hurrying after having returned to the car to get her cigarettes. Ms. Flentje denies that she was, in any way, influenced by alcohol or that she was hurrying and not proceeding carefully.

[52] There is no evidence that Ms. Flentje's physical condition or ability to walk was, in any way, influenced by alcohol. In the three hours preceding the arrival at the Buckhorn, she had consumed a maximum of three beers after a full meal. The Almonte Hospital records make no mention of her condition being influenced by alcohol.

[53] Ms. Flentje had never before fallen on ice or snow and had never injured herself in a fall. She is an active, outdoors woman who was wearing year old, winter hiking boots with large tread rubber soles, laced up the front. She was walking at a normal pace, not hurrying, at an angle across the parking lot towards the door of the Buckhorn, looking ahead. She did not stumble, and after she fell, indicated she slipped on ice which was observed by her brother Shane.

[54] I find no basis upon which to find Ms. Flentje contributorily negligent.

Damages

[55] The parties agreed on certain damages as follows:

1.	Loss of income	\$5,373.00
2.	Ministry of Health subrogated interest	\$4,731.47
3.	Telephone	\$ 16.00
4.	Dr. Murnaghan	\$ 25.00
5.	Cast boot	\$ 20.00
6.	Crutches	\$ 42.95
7.	Medication	\$ 100.00
8.	Transportation	\$ 150.00

[56] General damages are to left to be determined, along with the issues of prejudgment interest and costs.

General Damages

[57] Ms. Flentje suffered a comminuted fracture of the tibia near the ankle of her right leg. In addition, there was fracture to her fibular shaft, as indicated in the x-ray records of the Ottawa Hospital, Civic Campus. She underwent surgery on January 20, 2002, during which a plate and interfragmentary screws were inserted. The incision was closed with 35 sutures. She suffered significant pain immediately after the accident, which continued after surgery. Morphine was administered on two occasions while she was at the Ottawa Hospital. She was discharged with painkillers which she continued to take until the first week in February when she returned to reside at her own home.

[58] Ms. Flentje is an independent, self-sufficient young woman, who resented the fact that she could not fend for herself after the surgery. She resided at her father's home, which is across the street from her own small log home and was forced to accept the ministrations of her father, her father's partner, her brother and sister, until she returned to her own home at the end of the first week of February 2002.

[59] On January 30, 2002, she returned to the Ottawa Hospital, Civic Campus; her sutures were removed; and, a new cast was placed on her leg. She was shocked by extent of the scar on her leg. She continued to be frustrated, bored and depressed due to her reliance upon others to care for her. It should be noted that she suffered from depression prior to the injury and was prescribed Paxil for that depression. On January 30, 2002, Dr. Murnaghan transferred her file to Dr. Paul Anderson, orthopedic surgeon in Perth to alleviate travel time.

[60] On February 26, 2002, Dr. Anderson applied a fiberglass walking cast and, at that time, Ms. Flentje was able to partially weight bear. On April 8, 2002, the cast was removed and she was able to walk with a slight limp and some swelling was noted.

[61] On April 15, 2002, Ms. Flentje was able to return to her work as an office clerk at Mason Windows. Dr. Anderson indicated there were no restrictions to her walking, standing or lifting and stated, "This lady has recovered well from a serious injury" and was fit to return to her

normal work. At that time, Dr. Anderson wrote to Dr. Murnaghan at the Ottawa Hospital, Civic Campus indicating that Ms. Flentje was “walking independently without appliances and although she has a slight limp, she is taking full weight on her right leg. X-rays show good callus formation at the area of her tibia fracture and certainly the metal hardware is in good position.” Dr. Anderson indicated that she still had osteopenia around the ankle joint, but he indicated he had no objection to her working and would conduct a further review and x-rays at the end of June.

[62] By June 25, 2002, Ms. Flentje had left her position at Mason Windows and was working outdoors at a sawmill. Dr. Anderson indicated that her wound had matured but that she still had some discomfort and swelling in her ankle. He stated, “X-rays show that the fracture of her tibia has healed solidly but she still has osteopenia distal to the fracture and this will take some months yet to resolve.”

[63] Further x-rays were completed on September 9, 2002 which revealed further progression of healing, an increase in callus formation and a very faintly visible fracture line. There continued to be a mild degree of osteopenia. At his meeting with Ms. Flentje on September 11, 2002, Dr. Anderson noted that her right ankle had an excellent range of movement and that the calcium had been restored to the bones in her right leg. Therefore, the plate, which had been surgically implanted, no longer had a functional role. It was at that time that Ms. Flentje indicated her wish to have the plate removed. Dr. Anderson indicated, “I am not too enthusiastic about this because I don’t believe removing the plate will give her a lot of different feelings within the leg.” Nevertheless, he indicated he would review this with her, in a year’s time, and would remove the plate, if she so desired.

[64] Ms. Flentje continued to be concerned about the plate and screws, indicating that she could feel them in her ankle and wished to have them removed. Therefore, she returned to see Dr. Anderson on June 18, 2003 and requested that he remove the plate and screws from her right ankle. He discussed the nature of the surgery with her, along with possible complications. At that time, he examined her leg and noted that the scar had fully healed but that she continued to have numbness along the scar line and continued sensitivity when pushing on the plate in her ankle. Dr. Anderson agreed to do the surgery having satisfied himself that Ms. Flentje understood its advantages and disadvantages.

[65] On August 12, 2003, the surgery was performed and the plate and screws were removed. The incision was made along the same scar line. The sutures were removed on August 25, 2003 and it was noted that the wound had 100 percent healed and that Ms. Flentje was ambulatory without discomfort. At that time, she was working as a gas clerk at Mr. Gas and did not work for two weeks after the surgery.

[66] With respect to the second surgery, I note the following:

1. It was Ms. Flentje who decided to have the surgery, about which Dr. Anderson indicated he was not enthusiastic, as he did not believe that removing the plate would give her a lot of “different feelings within her leg”.
2. The surgery was elective and not necessary. It involved possible complications, which Dr. Anderson discussed with Ms. Flentje. There were no such complications post surgery.
3. In order to perform the surgery, Ms. Flentje’s previous incision was excised. Therefore, the scar that she now has on her right leg is as a result of two surgeries, one of which was elective.

[67] Ms. Flentje indicates that the only residual difficulties she has now are some swelling and limping, if the weather changes or if she “overdoes it”. She still has some numbness in her scar area. She is very self-conscious about her scar and will not wear shorts. Even in the summer months, she hides her scar by wearing long pants. Dr. Anderson, in his correspondence of October 11, 2004, states, “the impact of this fracture was to disable her while she recovered. The permanent sequelae is fortunately only a large scar on the leg, but no functional deficit or restrictions”. There is no evidence of a risk of post-traumatic arthritis.

[68] Based on all the evidence regarding the fracture, the limitations it caused, the surgery and the scar, I assess general damages for Ms. Flentje in the amount of \$30,000.

Conclusion

[69] In summary, I award the following:

1.	Loss of income	\$ 5,373.00
2.	Ministry of Health subrogated interest	\$ 4,731.47
3.	Telephone	\$ 16.00
4.	Dr. Murnaghan	\$ 25.00
5.	Cast boot	\$ 20.00
6.	Crutches	\$ 42.95
7.	Medication	\$ 100.00
8.	Transportation	\$ 150.00
9.	General Damages	<u>\$ 30,000.00</u>
	Total:	\$ 40,458.42

Prejudgment Interest and Costs

[70] Given the evidence as to the absence of any notice to the defendant regarding the accident and injuries to Ms. Flentje until he was served with the Statement of Claim in January 2004, almost two years after the fact, I will hear further oral submissions on what, if any, pre-judgment interest should be ordered and on costs, if those issues cannot be resolved. A date for oral submissions may be obtained from the trial coordinator’s office.

Blishen J.

Released: September 21, 2006

COURT FILE NO.: 04-CV-26382SR

ONTARIO

SUPERIOR COURT OF JUSTICE

B E T W E E N:

SYLVIA FLENTJE

Plaintiff

- and -

CARL NICHOLS and BUCKHORN
RESTAURANT & BANQUET FACILITIES

Defendants

REASONS FOR JUDGMENT

Blishen J.

Released: September 21, 2006